

TAB 21



Board of Education Report

File #: Rep-230-24/25, **Version:** 1**Agenda Date:** 3/11/2025**In Control:** Special Education & Specialized Programs

2024-2025 Nonpublic School/Agency (“NPS/A”) Approval of Master Contracts

Division of Special Education

Brief Description:

(2024-2025 Nonpublic School/Agency (“NPS/A”) Approval of Master Contracts) Recommends the ratification of the 2024-2025 Nonpublic School/Agency (“NPS/A”) Master Contracts.

Action Proposed:

Ratify the contract actions taken by the Division of Special Education within delegated authority as listed in Attachment “A”: Nonpublic School/Agency (“NPS/A”) Master Contracts (exceeding \$250,000) for the 2024-2025 school year.

Background:

The Division of Special Education prepares periodic reports for contract actions necessary for the provision of special education and related services in accordance with Board delegated authority to the Superintendent.

The Individuals with Disabilities Education Act (“IDEA”) requires that the District provide qualified students with disabilities with special education and related services. The District meets these obligations through its Special Education Local Plan Area (“SELPA”) Local Plan. The District is required to maintain a continuum of program options, including non-public, nonsectarian schools and nonpublic agencies, to meet the needs of its special education students. (Ed. Code, §§ 56360, 56361, 56365.)

The District is required to make available NPS and NPA services and must provide these services by entering into a master contract for non-public, nonsectarian school or agency services. The master contract must specify the financial agreement between the District and NPS/A for the services in a student’s IEP that the NPS/A will provide. (Ed. Code, § 56366(a).) The District negotiates its master contracts with NPS/As on an annual basis. (Title 5 C.C.R. § 3062(a).)

The Division of Special Education is seeking Board ratification of Nonpublic School/Agency Master Contracts for the 2024-25 school year, as provided for in Attachment “A”, for the provision of statutorily required Individualized Education Program (“IEP”) supports and services. These contracts are within the authority previously delegated in Board action taken on June 4, 2024 (Board Report No. 302 - 23/24).

Expected Outcomes:

Approval of these items will allow the Division of Special Education to continue the provision of special education supports and services provided by these contracts to the Los Angeles Unified School District to serve eligible students with disabilities in support of Board policies and goals.

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Board Options and Consequences:

A “YES” vote ratifies the Division of Special Education’s executed Master Contracts that provide NPS/A services to qualified students with disabilities.

A “NO” vote will result in immediate unavailability of these services or discontinuance of services, or both. The unavailability or discontinuance of these services would likely result in costly litigation and increased future costs in securing these services. Postponement of actions presented for ratification in Attachment “A” will delay contract award or delivery dates, resulting in costly litigation.

Policy Implications:

This action does not change District policy and conforms to Board action on June 4, 2024 (Board Report No. 302 - 23/24).

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board.

Student Impact:

These contracts support the provision of special education and related services required by federal and state special education laws.

Equity Impact:

Component	Score	Score Rationale
Recognition	3	The award of the nonpublic school and agency (NPS/A) master contracts supports the District’s efforts to provide mandated special education and related services and programs for students with disabilities pursuant to their Individualized Education Plan (IEP). The District is required to maintain a continuum of program options, to include nonpublic school and agency services, to meet the needs of individuals with exceptional needs for special education and related services as required by the IDEA.
Resource Prioritization	2	The NPS/A contracts make services available to qualified students with disabilities, to be provided through master contracts with California Department of Education certified nonpublic schools and agencies.
Results	3	The 2024-2025 NPS/A contracts ensure that the Division of Special Education has the required continuum of program options available to meet the needs of individuals with exceptional needs for special education and related services as required by the IDEA.
TOTAL	8	

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Issues and Analysis:

There are no policy implications for these agreements. The Administrative and Education Legal Services Team, Office of the General Counsel, has reviewed and approved the master contract as to form.

Attachments:

Previously adopted Board Report referenced in the Policy Implications section:

[Board Report No. 302 - 23/24, adopted June 4, 2024](#)

https://drive.google.com/file/d/12LGXLFEjnKLjYvTzK7gCHMXAUc_CKoyR/view?usp=sharing.

Submitted:

02/14/25

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RESPECTFULLY SUBMITTED,



ALBERTO M. CARVALHO
 Superintendent

APPROVED BY:



KARLA V. ESTRADA
 Deputy Superintendent Instruction

REVIEWED BY:



DEVORA NAVERA REED
 General Counsel

☒ Approved as to form.

APPROVED & PRESENTED BY:



ANTHONY AGUILAR
 Chief
 Division of Special Education and
 Specialized Programs

REVIEWED BY:



NOLBERTO DELGADILLO
 Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

APPROVED & PRESENTED BY:



JOSE SOTO
 Executive Director of Special Education
 Division of Special Education